

## Unsafe Building December 11, 2025

| Meeting Metadata | Details                                                                                               |
|------------------|-------------------------------------------------------------------------------------------------------|
| Video Recording  | <a href="https://www.youtube.com/watch?v=2Zuh5cB6Fj0">https://www.youtube.com/watch?v=2Zuh5cB6Fj0</a> |
| Publication Date | 2025-12-12T09:01:45Z                                                                                  |
| Target Category  | muncie_city                                                                                           |

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## Municipal Meeting Summary Report

**Meeting:** Unsafe Building Hearing Authority

**Date:** January 11, 2025

### 1. Pre-Meeting Hearings & Committee Work Sessions

*The transcript begins directly with the regular meeting proceedings; there was no separate prior statutory public hearing or committee session.*

### 2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** 00:00:57 The meeting of the Unsafe Building Hearing Authority was called to order by the presiding officers, noting compliance with the Indiana Unsafe Building Law (IC 36-7-9) and entering notice procedures into the record.
- **Attendance:**
  - **Members Present:** Gretchen Cheeseman, Mayor Dan Ridenower, James Heimck, and Councilman Jeff Green.
  - **City Staff Present:** Taylor Reed, Rebecca Moon, Melinda Coffee, Hannah Collins, Richard Rawlings (Administrators), Aubrey Chris (City Attorney), and Courtney Walker (Recording Secretary).

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### 3. Preliminary & Procedural Business

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- **Ceremonial Openings:** 00:03:08 All participating parties and witnesses stood to take a collective oath swearing/affirming truthfulness in testimony.
  - **Approval of Minutes:** *Not explicitly detailed in this transcript segment.*
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### 4. Substantive Business & Board Action

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#### New Cases: Demo Orders

- 00:03:49 **Item 1: 1924 West 17th Street**
    - **Sponsor / Presenter:** Vance (Property Owner) / City Staff.
    - **Deliberation Summary:** The owner explained the house suffered a fire approximately two months ago and she is attempting to manually tear it down with her sister. The insurance claim is currently disputed due to a delayed payment. Board members suggested utilizing legal aid or contacting the local All State agent for assistance.
    - **Item-Specific Public Input:** None.
    - **Action & Vote Disposition:** Order affirmed and continued for 30 days. Approved by Voice Vote.
  - 00:08:48 **Item 2: 1900 Block West 17th Street (Adjacent Lot)**
    - **Sponsor / Presenter:** Vance (Property Owner).
    - **Deliberation Summary:** This is the vacant lot adjacent to the fire-damaged property (Item 1). The owner and her sister are clearing debris. Board members suggested cleanup could eventually clear the lot for a potential partnership with Habitat for Humanity.
    - **Item-Specific Public Input:** None.
    - **Action & Vote Disposition:** Order affirmed and continued for 30 days. Approved by Voice Vote.
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#### New Cases: Rehab Orders

- 00:10:22 **Item: 8613 East Andover Avenue**
  - **Sponsor / Presenter:** Walter Po (Representative for Owner) / Edwood Good (Tenant).
  - **Deliberation Summary:** The representative reported progress on repairs (electrical panel labeling, exhaust fan, plumbing leaks fixed). However, the tenant testified that severe issues remain, including a gaping foundation/crawl space problem causing frost buildup on the water heater and freezing conditions inside the bathtub.

- **Item-Specific Public Input:** Tenant Edwood Good testified about ongoing unaddressed structural and weatherproofing failures (freezing conditions, rotten wall/door frame).
- **Action & Vote Disposition:** Continued for 30 days with a required building commissioner inspection prior to the next hearing. Approved by Voice Vote.

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## Continued Cases: Demo Orders

- **00:15:11 Item 15: 2017 North Glennwood Avenue**
  - **Sponsor / Presenter:** Jennifer Collis (Representative, Middletown/Wilson's Acquisition).
  - **Deliberation Summary:** Staff reported an inspection showed HVAC replacement bids are under review (planning a mini-split system) and minor drywall repairs remain outstanding. The inspector recommended release contingent on a passing final inspection.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Continued for 30 days, contingent on passing inspection. Approved by Voice Vote.
- **00:18:07 Item: 2913 West Kilgore Avenue**
  - **Sponsor / Presenter:** Satie Hannah (Property Owner / Land Bank Acquirer).
  - **Deliberation Summary:** The owner acquired the property from the land bank and intends to renovate it to live in by June/July. The roof was replaced, and internal cosmetic demo is underway. Board members advised the owner regarding the Redevelopment Commission's 50/50 facade grant program.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Continued to March 12th (90 days) with a required inspection and necessary permits (electrical, plumbing, HVAC) prior to the next hearing. Approved by Voice Vote.
- **00:22:54 Item 21: 2007 South Elm Street**
  - **Sponsor / Presenter:** Carl Long (Property Owner).
  - **Deliberation Summary:** The owner recently purchased the property, got the power turned on, secured the building, and cleaned the garage and house. The board noted structural concerns (buckling exterior walls, falling foundation/chimney bricks) and mentioned the facade grant program.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Continued for 90 days with a required inspection and permits prior to the next hearing. Approved by Voice Vote.
- **00:25:12 Item 22: 1421 East Highland Avenue**
  - **Sponsor / Presenter:** Carl Long (Property Owner).
  - **Deliberation Summary:** A previous sale fell through. The owner intends to put the property back on the market or work with an agent to sell it, maintaining the building

as secured in the interim.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Continued for 60 days. Approved by Voice Vote.
- **00:28:20 Item 23: 923 South Persian Drive**
  - **Sponsor / Presenter:** Carl Long (Property Owner).
  - **Deliberation Summary:** Power is on, building is cleaned and secured, and interior painting/cleaning is underway. An inspection was conducted the previous day.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Continued for 90 days with an inspection. Approved by Voice Vote.
- **00:30:35 Item: 51 East 29th Street (Auto Lot)**
  - **Sponsor / Presenter:** Heather McKibben (Business Owner).
  - **Deliberation Summary:** Staff and board expressed frustration over the slow pace of removing junk cars from the lot (approx. 65 removed over three months out of 311 total vehicles, while zoning violations persist). The sign has been partially dismantled but remains standing. Staff recommended a \$1,000 civil penalty for failing to remove the sign.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Imposed a \$1,000 civil penalty for failure to remove the sign. Ordered a minimum removal of 40 cars prior to the next hearing with verified receipts/evidence. Continued for 30 days. Approved by Voice Vote.
- **00:34:49 Item 26: 426<U+2013>428 West Howard Street**
  - **Sponsor / Presenter:** Owner (Name noted as participating from Indianapolis, 00:44:00).
  - **Deliberation Summary:** The owner discussed structural issues, including a rotted back breezeway/porch that needs to be torn down due to lack of funds for full contractor repairs. The owner is considering bundling properties with a commercial realtor due to a lack of personal financial means and job status.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Continued for 30 days. Approved by Voice Vote.
- **00:36:16 Item: 905 West Main Street**
  - **Sponsor / Presenter:** Uncle Siri / Jerry Don (Property Owners) / Daniel Fischer & Dylan Rexford (Tenants/Interested Parties).
  - **Deliberation Summary:** A contentious dispute between the landlord and tenants. The landlord stated an eviction filing was dismissed because the court required a 30/90-day notice. Tenants argued the eviction was illegal under lease terms and claimed lack of cooperation regarding repairs and reported landlord harassment. Board members advised the tenants on upcoming affordable housing options (Kilgore Place) and directed the landlord to work closely with legal counsel and communicate via email for access.
  - **Item-Specific Public Input:**

- **01:00:28** Daniel Fischer (Tenant) testified regarding ongoing maintenance neglect, illegal eviction attempts, and willingness to grant access for repairs.
  - **01:03:04** Dylan Rexford (Tenant) corroborated claims of communication barriers and safety concerns.
  - **Action & Vote Disposition:** Continued for 120 days (to April). Approved by Voice Vote.
- **01:15:18 Item 31: 2100 East Purdue Road**
  - **Sponsor / Presenter:** Property Owner / Grandchildren.
  - **Deliberation Summary:** Staff reported an inspection on the 5th showed continued progress, including the teardown of an unauthorized lean-to addition built by a relative.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Continued for 60 days with a required inspection prior to February. Approved by Voice Vote.
- **01:17:15 Item 17: 422 West Howard Street**
  - **Sponsor / Presenter:** Mashika Jones (Property Owner).
  - **Deliberation Summary:** The owner stated the interior was gutted down to the studs over the summer. Plans are to turn the property into affordable housing for veterans. A building permit application was obtained but not yet submitted. The owner also raised a complaint regarding sewage runoff from a neighboring property (416<U+2013>418 West Howard).
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Continued for 120 days with inspection and permit requirements. Approved by Voice Vote.
- **01:25:56 Item 13: 1621 West 16th Street**
  - **Sponsor / Presenter:** Kenneth Kent (Representative for Owner Daryl Bennett).
  - **Deliberation Summary:** The representative reported the interior is completely cleaned out and secured. A potential buyer has signed a purchase agreement. The representative requested waiver of a \$150 inspection fine incurred due to a date miscommunication.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Continued to April 9th (approx. 120 days). The fine waiver request was deferred until the April hearing pending property sale or completion. Approved by Voice Vote.
- **01:33:13 Item 7: 824 West 15th Street**
  - **Sponsor / Presenter:** Patrick (Representative, Side by Side Services LLC).
  - **Deliberation Summary:** Severe pest issues (roaches) and disrepair. The upstairs tenant was evicted and unit gutted. The downstairs unit houses a blind tenant and disabled son; the owner opted to keep them housed while executing intensive pest control (treated multiple times, with cleaner scheduled to scrub walls). City inspector Jeremy is monitoring progress.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Continued for 30 days with inspection (owner noted upcoming travel in February, requesting expedited review; hearing release applies if inspector signs off prior). Approved by Voice Vote.
- **01:45:52 Item 19: 2023 South Jefferson Street**
  - **Sponsor / Presenter:** William Mifflin (Property Owner) / City Staff.
  - **Deliberation Summary:** Staff noted this property was previously placed on the non-compliance list for demolition and a vacate order due to severe disrepair and refusal to permit asbestos inspection access. The owner stated he has been hospitalized frequently and opposes demolition. City staff noted gas and water lines were disconnected for impending demolition.
  - **Item-Specific Public Input:** None.
  - **Action & Vote Disposition:** Approved referral to legal counsel to pursue court proceedings for demolition and an asbestos inspection warrant. Approved by Voice Vote.
- **01:52:47 Bulk Docket Action (Multiple Default Properties):**
  - **Item Identifier:** Properties identified on the docket as **Numbers 3 through 6, 9 through 12, 14, 16, 18, 24, 27, 28, and 30.**
  - **Deliberation Summary:** Presiding officer noted that no owners appeared after due notice. Staff recommendations and building commissioner reports were adopted as findings of fact and official orders.
  - **Action & Vote Disposition:** Staff recommendations and orders adopted. Approved by Voice Vote.

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## 5. Open Public Comment / Citizen Forum

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- **01:38:11 Julio (Community Representative / Resident):** Addressed the board regarding uncalendered progress updates for 928 North Gavin Street and 1617 North Madison Street (noting Madison interior gutting, squatter removal, and potential buyers). Additionally, inquired about local CDBG homeowner repair funds, city action plans, and neighborhood association engagement in Morningside.

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## 6. Administrative Updates & Adjournment

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- **Staff / Board Announcements:** Board members and staff directed residents to city website resources (Action Plan, Facade Grant info) and offered assistance at city offices across the hall.
  - **Adjournment:** **01:53:38** Upon a motion duly made and seconded, the meeting was adjourned by voice vote.
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